HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE DEMOCRATIC REPUBLIC OF CONGO

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in the DRC, grounded in the environmental impact study and certificate system, the mining code's community obligations, the cahier des charges and the 0.3% development allocation, and documented community campaigns

This guide uses the Congolese legal terms you will actually encounter (the EIES and the PGES, the ACE and the certificat environnemental, the enquête publique, the cahier des charges, the dotation of 0.3%, the organisme spécialisé, the redevance minière, déchéance of a title, and so on), each explained in plain language where it first comes up. The DRC's mining and environmental rules have been revised significantly and implementing measures continue to change; the core mechanics below apply, but always check the current position.

> **A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. French legal terms are given with a short English gloss, since the law itself is in French.
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> **A note on money.** Budgets in this guide are in US dollars, which are widely used in the DRC alongside the Congolese franc. Every figure is indicative — most Congolese community campaigns run on very little cash and a great deal of travel, with support from national civil-society organisations. Treat the ranges as a menu, not a bill.
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> **A note on risk.** Conditions vary enormously across the country. In the mining provinces the main risks are pressure, co-optation, and legal harassment; in the conflict-affected east, defending land and resources can be extremely dangerous. This guide prioritises **documentary and administrative routes**, which carry the least risk and — because the mining code creates enforceable community entitlements — are also among the most effective. Read Section 13 before acting.

TABLE OF CONTENTS

INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in the Democratic Republic of Congo — and the country's law gives affected communities something unusual: **enforceable entitlements attached to the project itself**. Under **Law No. 11/009 of 9 July 2011** on the fundamental principles of environmental protection, **any** development, infrastructure, industrial, commercial, agricultural, forestry, mining, or telecommunications project likely to affect the environment must first undergo an **environmental and social impact study (EIES)** with an approved **environmental and social management plan (PGES)**, evaluated and approved by the **Congolese Environment Agency (ACE)**. The implementing decree of 2014 expressly names **local communities and Indigenous peoples** among the **stakeholders** in that process, and the law obliges the State to make environmental information available to the public, with remedies where information is unjustifiably refused.

For mining — the sector that shapes most of the country's development conflicts — the **Mining Code, as revised in March 2018**, goes further. It replaced the old environmental opinion with a **certificat environnemental**, now required before an exploitation permit can be granted. It requires every mining company to negotiate and execute a **cahier des charges**, a binding schedule of commitments to the surrounding communities, drawn up **in consultation with those communities**. It requires a **minimum allocation of 0.3% of annual turnover** to community development projects, managed by a dedicated entity that must include **representatives of the local communities** alongside the company. And it directs a share of the **mining royalty** — which reaches **10% for strategic substances** — to provincial and local authorities.

That is a real toolkit, and it is unusual precisely because it converts community consent and benefit into **legal obligations with money attached**. The honest counterweight is heavy, and it is documented. Between 2018 and 2024 only **71 cahiers des charges were signed out of some 402 expected**. A state audit, confirmed by civil-society research, found that **more than 60% of producing mining companies had still not established** the specialised entity required to collect and allocate the 0.3% allocation, with late, partial, or absent payments and little transparency. Where those entities exist, communities sit in a **minority** on them. Free, prior and informed consent is not yet properly embedded in the implementing measures, and civil society continues to demand it. Provincial environmental institutions have serious capacity gaps, particularly in monitoring. And in the conflict-affected east, the ordinary assumptions of legal campaigning may not hold at all.

What "winning" realistically means. Rarely a project cancelled outright. More often: a **cahier des charges actually negotiated and signed** on terms the community shaped; the **0.3% allocation constituted and paid**, with the community's representatives seated on the managing entity; the **EIES and PGES corrected** and real commitments written in; compensation for relocation improved; a **certificat environnemental** withheld or conditioned; enforcement action, up to **forfeiture of the mining title**, where obligations are ignored; or a project delayed until it is renegotiated. The realistic goal is to **make the entitlements the law already gives you actually happen** — which in the DRC is both the most achievable and the most valuable thing a community can do.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down the permit, the operator, the assessment stage, and which community entitlements are owed.
2. **Documentation** — build a record of the land and people affected, the harm, and what has and has not been delivered.
3. **Local opposition** — organise the affected communities so they can negotiate and be represented properly.
4. **Legal challenges** — use the EIES and enquête publique, the certificate, the cahier des charges, the 0.3% allocation, and enforcement.
5. **Media strategy** — generate coverage that raises the cost of non-compliance, nationally and with buyers.

No single step wins alone. In the DRC the combination that works is **organised community representation plus insistence on the code's community obligations**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

The DRC's institutions are under-resourced, enforcement is weak, corruption is a documented problem, and the community provisions of the mining code have been widely ignored. Assessing that honestly helps you choose the right tools: the strongest routes are participation in the **enquête publique**, demanding a properly negotiated **cahier des charges**, insisting the **0.3% allocation** be constituted and paid with community representation, and using the **ACE and mining inspectorate** to record breaches — which can lead to **déchéance** of a title. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with tilted situations, including the east.

How to use this guide

Read Sections 1–3 and Section 13 before acting. Then work Section 4 (Target Identification) — it tells you what stage the project is at and which entitlements are owed. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide how to proceed safely.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. The DRC is a vast, decentralised republic with **provinces**, and beneath them **decentralised territorial entities (ETDs)** — territories, sectors, chiefdoms and communes — alongside **customary authorities** who retain real influence over land and people in rural areas. Environmental regulation rests on **Law No. 11/009 of 2011** and its 2014 implementing decree; the mining sector is governed by the **Mining Code of 2002 as revised in 2018** and the Mining Regulations.

The bodies that decide — and what each one controls

The ACE (Agence Congolaise de l'Environnement). A technical body of the Ministry of Environment, established by decree in 2014. It **validates the terms of reference** for an impact study, **evaluates and approves the EIES and PGES**, and **monitors implementation**. In mining it works alongside the mining environmental directorate. This is your central environmental arena.

The DPEM (mining environmental protection directorate). Handles the environmental and social examination of mining projects in collaboration with the ACE, and — importantly for enforcement — can record breaches of obligations.

The Ministry of Mines and the mining cadastre. Grant and administer **exploration and exploitation permits**. The Minister of Mines can, on the basis of recorded breaches, order the **withdrawal of rights or déchéance (forfeiture) of a title** — the ultimate sanction, and one worth knowing exists.

Provincial governments and the Provincial Environment Committees. Environmental management is delegated to provincial committees, though these have significant capacity gaps, particularly on monitoring. Provinces and **ETDs** also receive a share of the mining royalty directly, which makes them interested parties in how a project performs.

Customary and local authorities. In practice, chiefs and local leaders are central to how any project engages a community — and, because they are the interlocutors developers reach for first, they are also where pressure and division are most often applied.

The ICCN. The conservation institute responsible for protected areas, relevant wherever a project touches a park or reserve.

Which one is "yours"? Ask: is the project at the **EIES stage**, and have the **terms of reference** been validated by the ACE? Is a **certificat environnemental** required and has it issued? Is this a **mining exploitation permit**, triggering the **cahier des charges** and the **0.3% allocation**? Which province and ETD, and what royalty share do they receive? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

The environmental track, under the 2011 law and the 2014 decree:

1. **Screening and terms of reference.** Any project likely to have an environmental impact is subject to a **prior EIES**. The **terms of reference** must be validated and approved by the **ACE** — a step worth knowing about, because a study built on narrow terms of reference will produce narrow findings.
2. **The EIES and the PGES.** The proponent prepares the impact study and an **environmental and social management plan** setting out mitigation, monitoring, and commitments.
3. **The enquête publique (public inquiry).** The 2014 decree defines **stakeholders** to include **local communities and Indigenous peoples**, village associations, recognised NGOs, local authorities, and even universities and research centres whose work can inform the inquiry. **This is your formal entry point**, and being named in the decree matters: your participation is not a courtesy.
4. **Evaluation and approval.** The ACE evaluates and approves the EIES and PGES, and monitors implementation afterwards. In mining, approval leads to the **certificat environnemental**.
5. **The certificat environnemental.** Since the 2018 revision this **replaced the former environmental opinion** and is a **precondition for obtaining an exploitation permit** — meaning the environmental process is not advisory but gating.

The mining community track, under the 2018 revision:

1. **The cahier des charges.** The company must draw up, **in consultation with the local communities**, a schedule of commitments to improve their living conditions and govern the relationship between company and communities — and then **execute it**.
2. **The dotation of 0.3%.** A minimum of **0.3% of annual turnover** must be allocated to community development projects, and — critically — placed at the disposal of and managed by a **legal entity comprising representatives of the title holder and of the surrounding local communities directly concerned**.
3. **The royalty share.** A portion of the **mining royalty** — up to **10% for strategic substances** — is paid **directly to provincial and local authorities**, creating a local revenue stream you can ask questions about.
4. **Relocation and compensation.** The code includes the principle of **compensation by the company for relocation of local communities**.
5. **Transparency.** The revision incorporates the principles of the extractive industries transparency initiative, which supports demands for disclosure.

The rulebook — the policies that decide the outcome

- **Law No. 11/009 (2011) and the 2014 decree.** Was an EIES required and carried out; were the terms of reference validated; was a genuine **enquête publique** held with stakeholders including local communities and Indigenous peoples; is the PGES being implemented?
- **The Mining Code as revised in 2018.** Is there a **certificat environnemental**? Has a **cahier des charges** been negotiated and signed? Has the **0.3% allocation** been constituted, paid, and managed by an entity that actually includes community representatives?
- **Access to environmental information.** The 2011 law obliges the State, provinces and ETDs to **make available to the public all information on the state of the environment**, with the modalities and the **remedies for unjustified refusal** to be set by decree — a right worth invoking in writing.
- **Forest and land law.** The Forest Code of 2002 and the land legislation of 1973 govern forests and land, under which land is state-owned while customary occupation is recognised in practice — a tension that leaves rural communities exposed and makes documentation of occupation essential.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. The DRC holds a decisive share of the world's cobalt and vast copper, gold, tin, tantalum, timber, and peatland resources, and mining dominates export earnings and state revenue; provinces and local entities depend on royalty transfers; permits are valuable and permitting institutions are under-resourced; and the community obligations that would redistribute some of this value have, on the state's own audit, been widely unimplemented. None of this is inherently unlawful, but it explains the default lean — and why the community's most productive lever is usually **demanding the entitlements the code already grants**, backed by the threat of enforcement.

The overseers — who watches the decision-makers

- **The ACE and the DPEM** — which can record breaches of environmental and social obligations.
- **The Minister of Mines** — who can withdraw rights or declare **déchéance** of a title on the basis of recorded breaches.
- **The Cour des comptes (audit court)** — whose audit exposed the failure to establish the entities managing the 0.3% allocation.
- **Provincial assemblies and ETDs** — recipients of royalty shares, with an institutional interest in compliance.
- **National civil-society coalitions** — the DRC has organised natural-resource governance networks that publish audits and litigate the community provisions.
- **International mechanisms** — transparency initiatives, lender and buyer standards, and complaint mechanisms attached to development finance, which matter greatly where a project is financed or supplied internationally.

Naming and using the right body matters: in the DRC the most consequential early judgment is usually **which unmet legal entitlement you can prove and press**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Congolese and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for the DRC sits inside the table: the highest-yield actions are not attempts to cancel projects but demands that the **community obligations already written into the mining code be performed** — because those obligations are specific, funded, and, on the state's own audit, largely unmet.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (USD)	What "Success" Means
Documentation only	5–10%	1–3 months	low	Basis for every other step
Local organisation only	20–35%	6–24 months	low	Community speaks with one voice
Participation in the enquête publique	15–30%	1–3 months	low	On record; PGES commitments strengthened
Demand for a cahier des charges	35–55%	6–24 months	low	**Agreement negotiated and signed**
Demand for the 0.3% allocation and entity	30–50%	6–24 months	low	Fund constituted; community seated on it
Complaint to ACE / mining inspectorate	25–40%	3–18 months	low	Breach recorded; corrective measures
Escalation toward title sanction	15–30%	12–48 months	moderate	Withdrawal of rights or déchéance threatened
Royalty accountability at province/ETD	20–35%	6–24 months	low	Transfers traced and questioned
Media / buyer and lender pressure	25–40%	3–12 months	low	Company acts to protect market access
Docs + organisation + media	35–50%	9–24 months	low–moderate	Pressure plus a stronger claim
All steps combined	50–65%	12–48 months	moderate	Agreement signed and funded, PGES enforced, compensation improved, or project renegotiated

Key insight: all steps together are far more effective than any single one — and the Congolese multiplier is that **the law already owes you something specific**. A community demanding a **cahier des charges** and the **0.3% allocation** is not asking for a favour; it is asking for performance of statutory obligations whose breach can be recorded by the regulator and can, in principle, cost the company its title. The distinctive advantages are those funded entitlements, the **certificat environnemental** as a gate on the exploitation permit, named stakeholder status for **local communities and Indigenous peoples**, and international buyer and lender exposure. The distinctive disadvantages are weak enforcement, minority community representation on the managing entities, unimplemented FPIC, and — in parts of the country — insecurity.

A note on cost: participation in the public inquiry, complaints to the ACE and the mining inspectorate, and demands for the cahier des charges cost little beyond travel. Congolese natural-resource civil-society organisations produce audits and provide legal support, and international mechanisms attached to lenders and buyers cost nothing to approach. The dominant practical cost is travel and convening across dispersed villages.

Effectiveness Visualization

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SUCCESS PROBABILITY (agreement signed and funded, PGES enforced,
compensation improved, or project renegotiated)

FAVOURABLE SCENARIO (producing mine, obligations plainly unmet,
communities organised, national organisation engaged):
All steps combined:       ██████████████   50–65%
Cahier des charges:       ████████████     35–55%
0.3% allocation:          ███████████      30–50%
Single step:              ████             5–35%

TILTED SCENARIO (exploration stage or artisanal/informal operation,
insecure area, no records available):
All steps combined:       ████████         30–45%
Complaint to ACE:         ██████           20–35%
Local + media:            █████            15–30%
Single step:              ██               3–15%
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How to read this honestly. In the DRC the strongest facts are **specific unmet obligations**: no cahier des charges where one is required; no specialised entity constituted for the 0.3% allocation; PGES commitments unperformed;

relocation without proper compensation; or an exploitation permit operating without a valid **certificat environnemental**. These are provable from documents and the state's own audits, and the regulator has power to record them. What is much harder is stopping a project outright, and harder still where the operation is informal or the area is insecure — in the artisanal sector many of these formal obligations simply do not bite in practice, and in conflict-affected areas the assumptions behind legal campaigning may not hold. Judge success accordingly: **a signed and funded agreement, an enforced management plan, and fair compensation are the wins available here**, and they are real ones.

Step Importance Ranking (When All Combined)

1. **Local organisation and representation** — first, because both the cahier des charges and the 0.3% entity depend on the community being able to nominate genuine representatives.
2. **Legal challenges** — the code's community obligations, the environmental certificate, and enforcement.
3. **Documentation** — of the affected land and people, the harm, and what has and has not been delivered.
4. **Media and external pressure** — including buyers and lenders, which is unusually potent for Congolese minerals.
5. **The enquête publique** — cheap, formally recognised, and the moment to write commitments into the PGES.

Winning Congolese campaigns combined organised community representation, documented non-performance of specific obligations, national civil-society support, and external pressure on companies whose customers care.

What Congolese Campaigns Actually Show

A few patterns recur. **The 2018 revision created real, funded entitlements** — a **cahier des charges** negotiated with communities, a **minimum 0.3% of turnover** for community development managed by an entity that must include community representatives, direct royalty transfers to provinces and local entities, compensation for relocation, and a **certificat environnemental** as a precondition for an exploitation permit. **But performance has been poor, and this is officially documented** — only **71 cahiers des charges were signed between 2018 and 2024 out of around 402 expected**, and a **Cour des comptes audit, confirmed by civil-society research, found that more than 60% of producing mining companies had not established** the specialised entity required to manage the allocation, with late, partial, or missing payments and pervasive opacity. **Civil society has driven what progress exists** — the 0.3% allocation itself was introduced on civil-society proposals, built on a company-level model, and Congolese coalitions continue to audit compliance and press for **free, prior and informed consent** standards to be written into the implementing measures. **And the design has a flaw worth knowing** — in the entities managing the allocation, community representatives can sit in a **minority** against public institutions, which is precisely why who represents you, and how, matters so much. The through-line: **in the DRC, demand performance of what you are already owed, prove non-performance from the record, and use every external lever available.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and keep the answers in a document held by the community group — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: the exact area affected, the project type and stage, and what is there now — **fields and gardens, forest and non-timber forest products, rivers and streams used for drinking, washing and fishing, sacred sites and burial grounds, and homes facing relocation**. Obtain the **EIES and the PGES** and list every admitted impact with its page reference. Pay particular attention to **water**, to **relocation and compensation**, and to **dust, tailings and waste**, which dominate the mining provinces' conflicts.

Question 2: Who Has Decision-Making Power — and What Is Owed?

Identify precisely: (a) the **permit** — exploration or exploitation, its number, holder, and any parent company; (b) whether a **certificat environnemental** has been issued and whether the **EIES/PGES** were approved by the **ACE**; (c) whether a **cahier des charges** exists — and if so, its terms; (d) whether the **0.3% allocation** has been constituted and whether a managing entity exists **with community representatives on it**; and (e) which **province and ETD** receive the royalty share. Questions (c) and (d) are usually where the case is.

Question 3: What Specific Action Changes It?

Outcomes available here include: a **cahier des charges** negotiated and signed on better terms; the **0.3% fund** constituted, paid, and community-represented; **PGES commitments enforced**; **compensation for relocation** improved; a **certificat environnemental** withheld or conditioned; a **breach recorded** by the ACE or the mining inspectorate; and, at the outer edge, **withdrawal of rights or déchéance** of the title. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarise: the **enquête publique** window during the EIES, which is short and often poorly publicised in rural areas; the **certificat environnemental** decision, since it gates the exploitation permit; and, for existing operations, the **annual cycle** — turnover determines the 0.3% allocation each year, so every year is a fresh opportunity to demand constitution and payment. Where compensation or relocation is proposed, act **before** people move, because leverage collapses afterwards.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the permit holder and its **parent company or ultimate buyer**, since Congolese minerals feed international supply chains with their own standards; whether the operation is industrial, semi-industrial, or **artisanal**, because the formal obligations bite very differently; which local authorities receive royalty transfers; and who has been appointed to represent "the community" in any existing structure, and by whom. Build a dated, sourced record held collectively, and route allegations properly.

Output of Step 1: a one-page fact sheet with the affected area and villages, the permit and operator, the environmental approval status, whether a cahier des charges and 0.3% entity exist, the royalty recipients, every deadline, and the money map.

Worked example: which lever is actually open

Suppose an industrial mine has been operating near several villages for some years; dust covers the fields, a stream people drink from runs discoloured, and families told they would be relocated are still waiting. Working the questions: **Q1** — you record the fields, the stream, the households awaiting relocation, and the dust. **Q2** — you establish that an **exploitation permit** exists, so a **certificat environnemental** and an approved **PGES** should exist too; and then you ask the decisive questions: **is there a cahier des charges, and has the 0.3% allocation been constituted with community representatives?** Given that only a small fraction of expected cahiers des charges have been signed nationally and most producing companies had not set up the required entity, the odds are that at least one is missing. **Q3** — the live levers are demanding the **cahier des charges** and the **allocation**, insisting on **PGES enforcement** for the dust and water, and lodging a **complaint with the ACE and the mining inspectorate** so breaches are recorded. **Q4** — you work the annual cycle and act before any relocation proceeds. **Q5** — the buyer of the mine's output may be subject to standards that make non-performance costly. In an afternoon you know that **the unmet statutory entitlements are the campaign**, and that they come with money attached.

STEP 2: DOCUMENTATION

Documentation in the DRC serves a particular purpose: because the strongest claims are that **specific legal obligations have not been performed**, your evidence must show two things side by side — **what was promised or owed**, and **what actually exists on the ground**. That is a comparison, not merely a complaint, and it is what regulators, auditors, national organisations, and international buyers can act on.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project, or — for an operating mine — what exists **now**.

Water first. Document the streams, rivers, springs and wells people drink from, wash in, and fish from: their location, condition, and the households that depend on each. Photograph with dates. In the mining provinces, water is the most common and most serious grievance.

Fields, forest, and livelihoods. Document cultivated fields and gardens, fallow land, forest used for firewood, medicine, caterpillars, and other products, fishing grounds, and the households depending on them. Where land is being taken, record what each household holds and uses — because under Congolese law land is state-owned and **customary occupation is recognised in practice rather than by title**, your own detailed record of occupation and use is often the only proof that exists.

Homes, relocation, and sacred sites. Document dwellings, burial grounds, and sacred sites, and — where relocation is proposed or under way — the households affected, what they were promised, and what they have received.

Health and dust. Where an operation is running, record visible dust, respiratory complaints, and any changes in water since operations began.

How to hold it. Keep everything dated and located, and **hold it collectively**, with copies outside the village. Records held by one person become both a source of dispute and a target for pressure.

LAYER 2: OBLIGATION AND PERFORMANCE ANALYSIS

This is the distinctively Congolese layer, and the most important. For each obligation, record **what is owed** and **what has happened**:

1. **The environmental approval.** Does a **certificat environnemental** exist? Was an **EIES** carried out and a **PGES** approved by the **ACE**? Obtain the PGES and extract its concrete commitments — dust suppression, water protection, rehabilitation, employment, grievance mechanisms — and check each against reality.
2. **The cahier des charges.** Does one exist? Was it drawn up **in consultation with the communities**, and with whom? What does it commit the company to, by when, and what has actually been delivered? Where none exists, that absence is itself the finding — and a nationally common one.
3. **The 0.3% allocation.** Has the allocation been constituted? Is there a **specialised managing entity**, and does it include **representatives of the local communities**? Who nominated them? Have funds been paid, and how were projects chosen? The state's own audit found most producing companies had not established this entity at all.
4. **The royalty share and relocation compensation.** What royalty share reaches the province and the ETD, and what has it funded? Where relocation occurred, was compensation paid, to whom, and on what basis?

Get expert eyes on it. National natural-resource governance organisations produce exactly this kind of compliance analysis and can help structure it; a simple, credible **water sample** upstream and downstream, dated and located, is worth a great deal where contamination is alleged.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate harm into human terms, and into figures where you can:

- **Health and water** — households whose water source has changed, distances now walked, illness patterns, and dust exposure.
- **Livelihoods and land** — fields lost, harvests reduced, fishing and forest products affected, and what that means per household in an economy where these are primary.
- **Promises versus delivery** — the single most powerful category in the DRC: schools, clinics, boreholes, roads and jobs promised in a cahier des charges, a PGES, or a public meeting, set against what physically exists today, with photographs.

Package this layer twice: a rigorous version in **French** for the ACE, the mining inspectorate, and any auditor, and a plain-language version in **Swahili, Lingala, Tshiluba or Kikongo** as appropriate for community meetings.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1–2)** — water, fields, forest, households, and the relocation position.
- **Phase 2: Obligations (Months 1–3)** — obtain the PGES, the cahier des charges if any, and the record of the 0.3% allocation; build the promised-versus-delivered table.
- **Phase 3: Human and economic (Months 3–4)** — quantify the losses and the undelivered commitments.
- **Phase 4: Annual cycle (ongoing)** — revisit each year, because the allocation is calculated annually and each year is a fresh claim.

Common Documentation Pitfalls (What Fails)

- **Complaining about harm without checking obligations** — in the DRC the unmet obligation is the stronger claim.
- **Not obtaining the PGES** — its commitments are specific, approved, and enforceable.

- **Assuming a cahier des charges exists** — nationally, most expected ones do not.
- **No record of customary occupation** — with land state-owned, your documentation may be the only evidence.
- **Losing the archive to one person** — hold it collectively.
- **Missing the annual cycle** — the allocation is owed every year.

Documentation Budget Breakdown (USD)

Item	Low (community)	Higher (supported)
Photography, GPS, mapping	minimal	modest
Travel between villages and to the provincial centre	modest	moderate
Copies of PGES, permits, agreements	modest	modest
Water sampling and analysis	modest	moderate
Technical or legal support	often via NGOs	moderate
Meetings and translation	modest	modest

The dominant real cost is **travel and convening**. Fund it collectively and account for it openly — where community funds are in play, transparent accounts are the best protection against the divisions that follow money.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what matters in a Congolese case is documentary, but it sits across several institutions and is not always freely given. Persistence and formality matter.

The ACE. The **terms of reference**, the **EIES**, the **PGES** and its approval, the **certificat environnemental**, and any monitoring or inspection records. This is your first request.

The mining administration. The **permit** and its holder, the mining cadastre position, and — from the environmental directorate — any recorded breaches or corrective measures.

The company. The **cahier des charges** and the record of its negotiation, the constitution and accounts of the entity managing the **0.3% allocation**, and its social reporting. Companies subject to transparency commitments or international buyers are often more responsive than the administration.

The province and the ETD. Records of **royalty transfers** received and what they funded — a legitimate question with a defined legal basis.

Audit and civil-society material. The **Cour des comptes** audit and national civil-society studies on compliance with the 0.3% allocation and the cahiers des charges are public, authoritative, and directly usable as context showing the failure is systemic rather than local.

How to force a document open. The 2011 environmental law obliges the State, provinces and decentralised entities to **make available to the public all information relating to the state of the environment**, and provides that the modalities of access and the **remedies for unjustified refusal** be set by decree. Cite it in writing. In practice, combine formal written requests with requests through your provincial assembly member, national organisations that already hold copies, and — where a project is internationally financed or supplied — the disclosure obligations attached to lenders and buyers.

Free and low-cost help. The DRC has experienced national natural-resource governance organisations that audit compliance, publish, and support communities, alongside lawyers who take these cases. **Approaching them early is the highest-value single step**, because they know which obligations are unmet nationally and how to document them.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the regulator and the permit behind it, and the local-ally entries point you to the organisations already working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In the DRC, organising has a specific legal function that it does not have elsewhere in this series: the law requires the company to negotiate a **cahier des charges with the local communities**, and requires the entity managing the **0.3% allocation** to include **representatives of the local communities**. That means the question *who represents this community, and how were they chosen?* is not a matter of internal politics — **it is the mechanism through which money and commitments flow, or fail to**. A community that can nominate credible, accountable representatives is in a fundamentally stronger position than one that cannot.

Three principles carry special weight here: **legitimate representation** (choose representatives openly, by a process the community accepts, and record it — because otherwise someone else will be chosen for you); **transparency about money** (allocations and compensation are the fastest route to division, so accounts must be open from day one); and **breadth across villages** (a mine affects a cluster of villages, and a company negotiating with one village at a time will get better terms than a company facing all of them together).

PHASE 1: FOUNDATION (Months 1–2)

Step 1a: Start with the most affected, and map the villages. Reach the households whose water, fields, homes, or forest are directly affected, and identify **every village in the affected zone** — not only your own. Begin a dated photographic record of the water, the fields, and any works.

Step 1b: Affinity groups by concern. Let people join through what they care about — water, fields and harvests, dust and health, relocation and compensation, jobs, forest access. In mining areas water and relocation mobilise fastest.

Step 1c: Choose representatives properly, and record it. Convene the affected villages and select representatives through an open, minuted process. This is the single most consequential organisational act in a Congolese campaign, because the law channels both the **cahier des charges** negotiation and the **0.3% managing entity** through community representatives. Contact a **national natural-resource governance organisation** at the same time — they know what these processes should look like.

PHASE 2: PUBLIC LAUNCH (Months 2–4)

Step 2a: Community assembly across the villages. Hold a joint assembly of the affected villages, agree the priorities, and adopt a written statement of what the community is asking for — ideally framed around the specific obligations owed.

Step 2b: Written demand to the company and the administration. Send a formal letter asking whether a **cahier des charges** exists and requesting its negotiation; whether the **0.3% allocation** has been constituted and who sits on the managing entity; and requesting the **PGES** (Section 8B). Keep proof of delivery. This single letter often exposes the whole case.

Step 2c: Participate in the enquête publique. Where an EIES is under way, participate as **stakeholders** — a status the 2014 decree expressly gives to local communities and Indigenous peoples — and submit written observations that ask for specific commitments to be written into the **PGES** (Section 8C).

Step 2d: Media at launch. Time it to the inquiry or to a formal demand so coverage and process reinforce each other.

PHASE 3: COALITION EXPANSION (Months 3–6)

Step 3a: Broaden across villages and downstream. Bring in every affected village, downstream communities on the same watercourse, churches, which carry real weight and convening power, women's associations — often the most affected by water and land loss and frequently excluded from negotiations — youth groups, and provincial assembly members whose entities receive royalty transfers.

Step 3b: Coalition agreements. Agree explicitly who negotiates, who holds documents and accounts, and who speaks publicly — and put it in writing, because a company facing a divided negotiating team will exploit it.

Step 3c: Prepare to negotiate. If a **cahier des charges** is to be negotiated, prepare properly: obtain examples of others, get technical advice on costing commitments, decide priorities collectively in advance, and insist on written, dated, verifiable commitments rather than general promises.

PHASE 4: SUSTAINED PRESSURE (Months 6–12)

Step 4a: Use the regulators and the annual cycle. Lodge complaints with the **ACE** and the **mining environmental**

directorate so breaches are recorded; ask the province and the ETD what royalty transfers they received and what they funded; and return each year on the **0.3% allocation**, which is calculated annually.

Step 4b: External pressure. Where the operator supplies international markets or is financed internationally, raise non-performance with those buyers, lenders, and transparency mechanisms. For Congolese minerals this is unusually effective, because supply-chain scrutiny is intense.

Step 4c: Public actions and media — carefully. Meetings, memoranda, and peaceful gatherings are used and effective. But avoid obstruction at mine sites, which can bring confrontation with security forces; be aware that in the conflict-affected east the risks are of a different order entirely; and never let the campaign turn into a dispute between villages, which is exactly what fragmentation produces.

Worked example: a coalition that unlocks the strong levers

Five villages around an operating mine share the same complaints: dust on the fields, a discoloured stream, and promises of a school and boreholes that never materialised. Anger is high and there is talk of blocking the haul road — the one course likely to bring confrontation and arrests. What converts the anger into force happens differently. First, the villages **convene jointly and select representatives through an open, minuted process**, because the law channels both the cahier des charges and the allocation entity through community representatives, and whoever is chosen will hold that seat. Second, they send a single **written demand** asking whether a **cahier des charges** exists, whether the **0.3% allocation** has been constituted and who sits on its managing entity, and requesting the **PGES** — and the replies, or silence, define the case. Third, they build the **promised-versus-delivered table**: every commitment in the PGES and any agreement, against photographs of what exists. Fourth, with a national organisation's help, they lodge complaints with the **ACE** and the **mining environmental directorate** so breaches are formally recorded, and they ask the province what royalty it received. Fifth, they raise the same file with the operator's **international buyers**. Within a year the company faces recorded breaches, a documented compliance gap that mirrors findings in a national audit, and customers asking questions — and a negotiation begins on terms the villages set. The lesson generalises: **in the DRC, the representatives you choose properly and the written demand you send in month one are what turn unmet statutory entitlements into a signed, funded agreement by month twelve.**

Opposition Building Budget: Year-Long Campaign (USD)

Modest in cash, heavy in travel and convening. The recurring costs are transport between villages and to the provincial centre, communications, copying documents, meetings and translation, and occasional technical or legal support. National organisations frequently cover analysis and legal work. Keep **transparent, collective accounts** — where a campaign is about money owed to the community, the campaign's own accounting is the first thing that will be attacked.

STEP 4: LEGAL CHALLENGES

The DRC's legal position is unusual: the community's strongest claims are for **performance of obligations the law already imposes**, and the regulator has power to record breaches that can, at the outer edge, cost a company its title. Three tracks — the environmental process, the community entitlements, and enforcement and external mechanisms.

TRACK 1: THE ENVIRONMENTAL PROCESS (the front door)

- **The enquête publique.** Participate as a **stakeholder** — the 2014 decree expressly names **local communities and Indigenous peoples**, village associations and recognised NGOs — and submit written observations. Ask for specific, costed, dated commitments to be written into the **PGES**, because a commitment in an approved management plan is enforceable in a way that a promise at a meeting is not.
- **Challenge the terms of reference.** The **ACE validates the terms of reference** for the study. Narrow terms produce a narrow study, so where the terms omit your water, your fields, or the villages downstream, say so in writing.
- **The certificat environnemental.** Since the 2018 revision, this certificate **replaced the former environmental opinion and is required to obtain an exploitation permit**. Ask whether it exists and on what basis; an operation without valid environmental approval is operating on a defective foundation.
- **PGES enforcement.** Obtain the approved plan and compare it with reality, then report non-implementation to the ACE, which is responsible for **monitoring implementation**.

TRACK 2: THE COMMUNITY ENTITLEMENTS (the decisive route)

- **Demand the cahier des charges.** The company must draw up, **in consultation with the local communities**, a schedule of commitments and then execute it. Where none exists, demand its negotiation in writing to the company, the mining administration, and the province — and note that nationally only a small fraction of expected agreements have been signed, so you are describing a systemic failure, not an unusual complaint.
- **Demand the 0.3% allocation and proper representation on it.** At least **0.3% of annual turnover** must fund community development projects, made available to and managed by an entity comprising **representatives of the title holder and of the surrounding local communities directly concerned**. Ask whether the entity exists, who sits on it, how community members were selected, what has been paid, and what has been spent. A state audit found most producing companies had not constituted it at all.
- **Insist on the representation being real.** Because community members can be outnumbered on these bodies, insist that your representatives be chosen by the communities themselves through a recorded process, and that decisions and accounts be reported back.
- **Compensation for relocation.** Where people are moved, compensation is a principle of the code — negotiate before relocation, not after.
- **Royalty accountability.** A share of the royalty goes directly to the province and the ETD; ask what was received and what it funded.

TRACK 3: ENFORCEMENT AND EXTERNAL MECHANISMS

- **Complaints to the ACE and the mining environmental directorate.** These bodies can **record breaches** of environmental and social obligations. A recorded breach is the pivot: the procedures point to provisions under which the administration can pursue sanctions, up to **withdrawal of rights or déchéance (forfeiture) of the mining title** on the decision of the Minister of Mines. Even the credible prospect of that changes a company's behaviour.
- **The audit institutions.** The **Cour des comptes** has already audited compliance with the community allocation; its findings support your case and can be extended by fresh complaints.
- **Transparency mechanisms.** The 2018 revision incorporates extractive-transparency principles; use disclosure obligations to obtain figures on turnover, royalties, and community payments.
- **International levers.** Where the operator is foreign-owned, internationally financed, or supplying global markets, buyer standards, lender grievance mechanisms, and supply-chain due-diligence obligations are genuine and often faster than domestic enforcement.
- **The courts.** Administrative and civil actions are available, but are slow and difficult; take advice, and treat them as a complement to the administrative and external routes rather than the first move.

The three legal challenge types

TYPE 1: THE ENVIRONMENTAL PROCESS (the front door)

Enquête publique participation, terms-of-reference challenges, the certificate, and PGES enforcement.

TYPE 2: THE COMMUNITY ENTITLEMENTS (the decisive route)

The cahier des charges, the 0.3% allocation and genuine representation on its managing entity, compensation, and royalty accountability.

TYPE 3: ENFORCEMENT AND EXTERNAL MECHANISMS

Recorded breaches leading toward title sanctions, audit institutions, transparency, international buyers and lenders, and the courts.

Legal Strategy Decision Tree

1. **Is the project still at EIES stage?** → Participate in the **enquête publique** and get commitments written into the **PGES**.
2. **Is it an operating mine?** → Ask immediately whether a **cahier des charges** and the **0.3% entity** exist; nationally, the odds are that at least one does not.
3. **Are PGES commitments unperformed?** → Report to the **ACE**, which monitors implementation, and press for breaches to be recorded.
4. **Is relocation proposed?** → Negotiate compensation **before** anyone moves.
5. **Is the administration unresponsive?** → Escalate to audit institutions, transparency mechanisms, and the company's **buyers and lenders**.

Litigation and Advocacy Success Factors

Community representatives chosen by a recorded, legitimate process; a documented **promised-versus-delivered** comparison; the PGES and any agreement in hand; complaints filed formally so that breaches are recorded; national civil-society support; and, where available, external supply-chain pressure. The absence of legitimate representation is the most common way a Congolese claim fails.

What to Avoid

Treating harm as the claim when non-performance of a specific obligation is provable; accepting representatives appointed by the company or an authority without a community process; negotiating village by village; allowing relocation before compensation is agreed; and letting community funds be received without open accounts.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in the DRC.

No cahier des charges where one is required → demand for negotiation; systemic non-compliance (the strongest ground). Feed it with: the permit status, the absence of any agreement, and the national record showing this failure is widespread.

The 0.3% allocation not constituted, or no community representation → demand and complaint. Feed it with: the company's turnover, the absence of a managing entity, or the list of who sits on it and how they were chosen.

PGES commitments unperformed → complaint to the ACE; recorded breach. Feed it with: the approved plan, and photographs of what does and does not exist.

Operating without a valid certificat environnemental → defective foundation for the permit. Feed it with: the administration's answer, or its silence, to your written request.

Water contamination or dust affecting health → PGES enforcement and compensation. Feed it with: dated photographs, sampling where possible, household counts, and health complaints.

Relocation without adequate compensation → the code's compensation principle. Feed it with: what was promised, what was paid, and to whom.

Royalty transfers unaccounted for → provincial and ETD accountability. Feed it with: the transfers due and the answer to your written question about what they funded.

The pattern: **lead with a specific unmet obligation**, prove it by comparing document to reality, and file it so the breach is recorded.

STEP 5: MEDIA STRATEGY

Media matters in the DRC for two reasons: national coverage of mining grievances is followed by regulators and politicians, and — unusually — **the country's minerals sit in supply chains whose downstream buyers are subject to intense scrutiny**, so a documented compliance failure can travel a long way.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the **promised-versus-delivered table**, the PGES page showing the commitment, a photograph of the school or borehole that was never built, a named villager whose water changed, and the administration's reply — or its silence. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented broken obligation + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel: **water and health near mines**, **promised development that never arrived**, and **the national failure to implement the community provisions of the mining code** — the last being especially potent because it is confirmed by official audit.

Know the Outlets That Cover This Beat

Map the national outlets and their mining and environment correspondents, the specialist mining and natural-resource publications that follow the sector closely, provincial radio — which reaches affected villages directly and in local languages — and the international outlets and supply-chain publications that follow Congolese cobalt and copper.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer access to the villages and to your documents, and be scrupulously accurate — in a sector this contested, one wrong figure is used to dismiss everything else.

Why media matters even when it doesn't make the front page

Coverage reaches the national organisation that will audit the company, the provincial deputy who can ask about royalty transfers, the regulator who can record a breach, and — importantly — the **buyers and financiers** whose standards the operation may be breaching. In a country where domestic enforcement is weak, external attention often moves faster than the administration.

Sample Media Timeline

Launch with the promised-versus-delivered table; refresh at each milestone — the written demand and any reply, the complaint to the ACE, the response of the province on royalties, the negotiation of a cahier des charges, and each annual cycle of the allocation.

Media Measurement

Track coverage, but measure what matters: whether the company answers, whether the ACE records a breach, whether a cahier des charges negotiation begins, and whether the allocation is constituted and paid.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. Write in **French**, the language of the administration, and deliver through the registry (**bureau de réception**) keeping a stamped copy, or by recorded delivery. Sign collectively as the affected communities. Have a lawyer or a national organisation review anything heading to court.

8A. Email to a reporter (story pitch)

> **Subject:** [Territory, Province]: mine operating without a cahier des charges — documents attached
>
> Dear [name],
>
> [Company] has operated at [location] since [date]. We attach a table comparing the commitments in its **PGES** [and any agreement] with what physically exists in our villages today: the [school/borehole/road] promised on [page reference] has never been built, and the [name] stream our households drink from has changed since [date].
>
> We have written to the company and the administration asking whether a **cahier des charges** has been signed and whether the **0,3% dotation** for community development has been constituted and who sits on its managing body (letter dated [date], attached). [We have received no reply / the reply is attached.]
>
> Nationally, only a small proportion of expected cahiers des charges have been signed, and a state audit found most producing companies had not established the required entity — our situation appears to be part of that pattern.
>
> I can arrange interviews and a visit. Could we speak this week?
>
> [Name] · [Community group] · [phone] · [email]

8B. Written demand to the company and the mining administration

Objet : Demande relative au cahier des charges, à la dotation de 0,3% et au PGES — [projet], [localité]

À la Direction de [société], copie : Ministère des Mines / Division provinciale des Mines ; Agence Congolaise de l'Environnement ; Gouverneur de province ; Administrateur de territoire.

Nous, communautés locales de [villages], affectées par [projet] à [localité], demandons par la présente : 1. **Cahier des charges.** Existe-t-il un cahier des charges conclu avec nos communautés ? Si oui, nous en demandons copie ; si non, nous demandons l'ouverture immédiate de sa négociation avec nos représentants désignés le [date]. 2. **Dotation de 0,3%.** La dotation minimale de 0,3% du chiffre d'affaires a-t-elle été constituée ? Quel est l'**organisme** chargé de sa gestion, qui y siège, et comment les représentants des communautés ont-ils été désignés ? Quels montants ont été versés et affectés ? 3. **PGES.** Nous demandons copie du **plan de gestion environnementale et sociale** approuvé et l'état de sa mise en œuvre. 4. **Certificat environnemental.** Nous demandons confirmation de son existence et de sa date.

Nous sollicitons une réponse écrite dans un délai raisonnable.

[Signatures des représentants, villages, date, contact]

8C. Observations in the enquête publique

Objet : Observations des communautés locales dans le cadre de l'enquête publique — EIES [projet]

À l'Agence Congolaise de l'Environnement :

Les communautés locales de [villages], parties prenantes au sens du décret n° 14/019, formulent les observations suivantes : 1. **Eau.** Le projet affecte [rivière/source], utilisée par [nombre] ménages pour la boisson, la lessive et la pêche ; l'étude n'évalue pas suffisamment les effets en aval. 2. **Terres et champs.** [Superficies cultivées affectées, ménages concernés, sites sacrés et cimetières.] 3. **Réinstallation.** [Ménages concernés ; nous demandons que les modalités et les compensations soient précisées avant tout déplacement.] 4. **Termes de référence.** [Les TDR n'ont pas couvert [village/cours d'eau], que nous demandons d'inclure.] 5. **Engagements.** Nous demandons que les engagements suivants soient **inscrits dans le PGES**, avec échéances et budgets : [liste précise].

[Représentants, villages, date]

8D. Request for information under the environmental law

Objet : Demande d'accès à l'information environnementale

À [l'ACE / la Division provinciale de l'Environnement / l'administration minière] :

Conformément à la loi n° 11/009 du 09 juillet 2011, qui met à la charge de l'État, de la province et de l'entité territoriale décentralisée l'obligation de mettre à la disposition du public toute information relative à l'état de l'environnement, nous demandons copie de : 1. les **termes de référence** validés, l'**EIES** et le **PGES** approuvé pour [projet] ; 2. le **certificat environnemental** et sa date ; 3. les rapports de suivi, d'inspection ou de constat de manquement concernant [projet].

En cas de refus, nous demandons que les motifs nous soient notifiés par écrit, et nous nous réservons les voies de recours prévues.

[Nom, communauté, date, contact]

8E. Complaint to the ACE and the mining environmental directorate

Objet : Plainte pour non-exécution des engagements du PGES et des obligations sociales — [projet]

À l'Agence Congolaise de l'Environnement et à la Direction chargée de la protection de l'environnement minier :

Nous portons plainte concernant [projet] exploité par [société] à [localité], pour les manquements suivants : 1. **PGES.** Les engagements suivants ne sont pas exécutés : [liste, avec renvoi aux pages du PGES et photographies datées]. 2. **Eau et poussières.** [Description, dates, ménages affectés.] 3. **Obligations sociales.** [Absence de cahier des charges / dotation de 0,3% non constituée / absence de représentation communautaire dans l'organisme de gestion.]

Nous demandons **inspection, constat des manquements et mesures correctives**, et sollicitons d'être informés des suites.

[Représentants, villages, date, pièces jointes]

8F. Letter to the province and the ETD on royalty transfers

Objet : Demande d'information sur la quotité de la redevance minière et son affectation

À Son Excellence le Gouverneur de la Province de [province], copie : Administrateur du Territoire de [territoire] :

Les communautés de [villages], riveraines de [projet], sollicitent communication : (i) des montants de la **redevance minière** reçus par la province et par l'entité territoriale décentralisée au titre des exercices [années] ; et (ii) des **projets financés** au moyen de ces montants dans notre entité.

Nous sollicitons également une audience pour exposer nos préoccupations.

[Représentants, date, contact]

8G. Press release (effective)

COMMUNIQUÉ — [date]

Les communautés de [localité] réclament l'exécution des obligations sociales de [société]

Les communautés de [villages], riveraines de [projet], ont adressé le [date] une demande écrite à [société] et à l'administration concernant l'absence de **cahier des charges**, la non-constitution de la **dotation de 0,3%** et la non-exécution des engagements du **PGES**.

« [Citation brève d'un habitant] », déclare [nom]. Les communautés attendent notamment [engagement non tenu], mentionné à la page [x] du PGES. Au niveau national, seule une faible part des cahiers des charges attendus a été signée, et un audit de l'État a constaté que la majorité des sociétés en production n'avaient pas constitué l'organisme requis.

Contact : [nom, téléphone]. Documents, photographies et entretiens disponibles.

8H. Submission to buyers, lenders, or transparency mechanisms

Subject: Non-performance of statutory community obligations — [company], [project], DRC

To [the buyer / lender / transparency or grievance mechanism]:

We are the local communities affected by [project] operated by [company] in [territory, province]. We submit that the following statutory obligations under the Mining Code as revised in 2018 have not been performed: [no cahier des charges concluded with the communities / the 0.3% community development allocation has not been constituted or paid / no community representation on the managing entity / commitments in the approved PGES remain unimplemented].

We attach our documentation, our correspondence with the company and the administration, and the relevant public audit findings. We request that this be considered under your due-diligence and grievance procedures, and that we be informed of the outcome.

[Community representatives, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, write to the administration **in French**, cite permit and project references, and keep stamped copies of everything. **Sign collectively** through representatives chosen by a recorded community process — in the DRC, who signs is itself a legal question. Note that the annual cycle matters: the 0.3% allocation is calculated on each year's turnover, so a demand unmet this year can be renewed next year with added force. And keep public statements to documented facts.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can sustain a long campaign. If you have limited time, you can still do real work — and in the DRC the highest-leverage action is a single letter. In rough order of impact for the effort:

1. **Send the written demand** (Section 8B). One letter to the company and the mining administration asking whether a **cahier des charges** exists, whether the **0.3% allocation** has been constituted, who sits on its managing entity, and requesting the **PGES**, exposes the entire case. Nationally, most expected agreements have not been signed and most producing companies had not established the entity — so the odds are that the answer, or the silence, is your case.
2. **Choose representatives properly and record it.** An open, minuted selection by the affected villages is what allows the community to negotiate and to be seated on the managing entity. Without it, someone else will be chosen for you.
3. **Get the PGES and build the promised-versus-delivered table.** The approved plan contains specific commitments; photograph what does and does not exist beside each one. This table is the most persuasive single document a Congolese community can produce.
4. **Photograph the water, dated.** Streams and wells are the most common grievance and the most disputed evidence.
5. **File the complaint with the ACE and the mining environmental directorate** (Section 8E) so breaches are formally recorded — the step that opens the path toward sanctions.
6. **Ask the province and the ETD what royalty they received and what it funded** (Section 8F).
7. **Contact a national natural-resource governance organisation**, and — if the operator supplies international markets — send the same file to its **buyers** (Section 8H).

If you do only the first three, you have identified the unmet entitlement, secured legitimate representation, and built the evidence that proves non-performance. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

The DRC's tilt is not that the law is bad — on community entitlements it is unusually generous. The tilt is that **the law is not performed**, and the state's own audits say so.

What This Tilt DOES (and DOESN'T DO)

The tilt means the administration is under-resourced and provincial environmental bodies have serious monitoring gaps; the community provisions of the mining code have been largely unimplemented; community representatives can be outnumbered on the bodies that manage community money; free, prior and informed consent is not properly embedded in the implementing measures; artisanal and informal operations escape most of these obligations altogether; and in the conflict-affected east ordinary legal campaigning may be impossible. It does **not** remove your position: the **certificat environnemental gates the exploitation permit**; the **cahier des charges** and the **0.3% allocation** are statutory obligations with money attached; **local communities and Indigenous peoples are named stakeholders** in the environmental process; the **ACE monitors implementation** and can record breaches; the administration can pursue sanctions up to **déchéance of a title**; and Congolese minerals face intense international supply-chain scrutiny.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Industrial operation, obligations plainly unmet, communities organised.** The strongest position: your claim is for performance of a funded statutory duty, and non-performance is nationally documented.
- **Mixed.** An operation that has signed something but delivers little, or where representation is contested. Weight shifts to the promised-versus-delivered table, fixing representation, recorded complaints, and buyer pressure.
- **Entrenched.** An informal or artisanal operation, a politically protected licence, or an insecure area. Assume the formal levers bite weakly; concentrate on documentation, national organisations, external mechanisms, and — above all — safety.

Documented Congolese Dynamics

The record shows both the promise and the failure. **The 2018 revision created genuine entitlements** — the **cahier des charges** negotiated with communities, the **minimum 0.3% of turnover** for community development managed by an entity including community representatives, direct royalty transfers to provinces and local entities, compensation for relocation, transparency principles, and the **certificat environnemental** as a precondition for an exploitation permit. **Implementation has failed at scale, and officially so** — between 2018 and 2024 only **71 cahiers des charges were signed out of around 402 expected**, and a **Cour des comptes audit, confirmed by civil-society research, found more than 60% of producing companies had not constituted** the entity required to collect and allocate the community fund, amid late, partial, or missing payments and opacity. **Civil society built these rules and is enforcing**

them — the allocation was introduced on civil-society proposals from an existing company model, and Congolese coalitions audit compliance and press for FPIC standards in the implementing measures. **And the design disadvantages communities** — on the managing bodies, community representatives can be a minority against public institutions. The lesson: **the entitlement is real, the performance is not, and proving the gap is the campaign.**

Assessment Framework — Determine Your Situation

Ask: is the operation industrial or artisanal? Does a cahier des charges exist, and does the 0.3% entity? Who represents the community and how were they chosen? Is there an approved PGES and is it being implemented? Does the operator supply international buyers or have international financing? Is the area secure enough for open organising? The answers tell you whether to pursue entitlement performance, enforcement, external pressure — or, where security does not permit, documentation only.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Congolese communities use assemblies, memoranda, delegations to provincial authorities, and peaceful demonstrations. These can be effective, particularly when paired with formal complaints. But three cautions are serious. **Obstruction at mine sites can bring confrontation with private and public security forces. Disputes over community money are a common source of violence between and within villages**, which is why open accounts and legitimate representation matter so much. And **in the conflict-affected east, armed actors are present around some resource sites**, and the risks are of an entirely different order — in such areas, documentation and work through national organisations and international mechanisms may be the only responsible course. Take advice, keep everything peaceful, and never let a campaign become an inter-village conflict.

Honest Assessment

Tilted fights are harder, and the DRC's frustration is watching genuinely good provisions go unimplemented. But "harder" is not "hopeless": Congolese civil society wrote the community allocation into national law, has audited its non-performance, and continues to force agreements into existence one operation at a time. Concentrate force where the tilt is weakest — **a specific unmet obligation, provable from documents, filed so the breach is recorded** — and use the international exposure of Congolese minerals as leverage the administration cannot supply.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real in the DRC and well documented. Read your situation actor by actor, and document rather than accuse.

The community funds themselves. The most immediate risk for a community campaign: money intended for community development can be captured by whoever controls the managing entity. Signs: an entity you have never heard of, representatives you did not choose, no accounts, projects announced but not built. Lever: insist on **community-chosen representatives**, published accounts, and reporting back — and raise failures with the administration and the auditors.

The administration of the allocation. Civil society has publicly contested attempts by bodies outside the mining framework to control the allocation, arguing this violates the code. Signs: funds routed to entities the code does not name. Lever: cite the code's requirement that the fund be managed by an entity comprising the title holder and **the local communities directly concerned**.

The permitting institutions. Under-resourced bodies assessing large, valuable projects. Signs: an exploitation permit without a visible **certificat environnemental**, terms of reference that exclude the affected villages, no monitoring visits. Lever: the access-to-information right, formal complaints, and audit institutions.

Provincial and local authorities. Recipients of royalty shares with weak public accounting. Signs: transfers received but no visible projects. Lever: the written question on transfers and their use, and the provincial assembly.

The companies. Where the operator is a subsidiary of a foreign group or supplies international markets, obligations extend beyond Congolese law. Lever: buyer due-diligence and lender grievance mechanisms, which respond to documented non-performance.

How to act on it, safely. Document from records and the state's own audits before you speak. Route allegations to the **ACE and the mining administration**, the **Cour des comptes**, transparency mechanisms, and — where relevant — the operator's buyers and financiers. Do not publish unproven accusations against individuals, and be especially careful with allegations touching community leaders or local authorities: in a dispute over community money, that is the fastest route to lasting division and, in some areas, to real danger.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In the DRC the timeline has a distinctive rhythm: a fast opening built around a single written demand, and then an **annual cycle**, because the community allocation is calculated on each year's turnover and every year brings a fresh, renewable claim.

Realistic 12-Month Campaign Timeline

Months 1–2 (Foundation). - Map the **affected villages** and convene them; **select representatives through an open, minuted process** — the act on which both the cahier des charges and the allocation entity depend. - Begin the dated record of **water, fields, homes, and any works**. - Send the **written demand** to the company and the mining administration (Section 8B), and the **information request** to the ACE (Section 8D). - Contact a **national natural-resource governance organisation**.

Months 2–4 (Establishing the gap). - Obtain the **PGES**, the **certificat environnemental** position, and any **cahier des charges**; establish whether the **0.3% allocation** and its managing entity exist. - Build the **promised-versus-delivered table**, page reference beside photograph. - Where an EIES is under way, file **observations in the enquête publique** and ask for specific commitments to be written into the PGES (Section 8C). - Hold the joint community assembly; launch media on the table (Steps 3 and 5).

Months 4–8 (Formal pressure). - File the **complaint with the ACE and the mining environmental directorate** so breaches are recorded (Section 8E). - Write to the **province and the ETD** on royalty transfers and their use (Section 8F). - Where the operator supplies international markets, submit the file to **buyers, lenders, or transparency mechanisms** (Section 8H). - Prepare properly for any **cahier des charges negotiation**: examples, costings, priorities agreed in advance, written and dated commitments only.

Months 8–12 (Negotiation and enforcement). - Negotiate or press for the agreement; insist the **allocation be constituted** with genuine community representation and published accounts. - Escalate unresolved breaches toward **corrective measures and, where warranted, title sanctions**. - Return to the **annual cycle**: this year's turnover generates this year's allocation.

Beyond 12 months. - Treat the campaign as **annual and permanent**: each year, check the allocation, the agreement's execution, and the PGES. - Keep the representatives accountable and the accounts open — most Congolese community failures after a win are failures of governance, not of law. - Maintain the archive and the relationship with national organisations and, where relevant, international mechanisms.

Warning Signs — Act Early

Survey or drilling teams appearing; an EIES notice or public inquiry announced; talk of relocation or compensation lists being drawn up; a "community committee" appearing that no one selected; the first payments to individuals; a stream changing colour. Each is a trigger to **convene the villages and send the written demand** — because in the DRC the structures that will govern community money are usually created before the community is consulted.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: select representatives openly and record it; send the written demand early; obtain the PGES and build the promised-versus-delivered table; file complaints so breaches are recorded; negotiate across all affected villages together; insist on written, dated, costed commitments; keep accounts open; use buyers and lenders where available; and work the **annual cycle**. Losing campaigns: accept representatives chosen by others; negotiate village by village; take harm to the regulator without identifying the unmet obligation; allow relocation before compensation; and let community money flow without accounting.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in the DRC takes forms suited to its law and its constraints, and it is worth naming them so you recognise a win when you get one: - a **cahier des charges negotiated and signed**, on terms the communities shaped, with dated and costed commitments; - the **0.3% allocation constituted and paid**, with community representatives — chosen by the communities — seated on the managing entity and accounts published; - **PGES commitments enforced**: the borehole drilled, the dust suppressed, the rehabilitation done; - **compensation for relocation** negotiated before people move, and actually paid; - a **breach recorded** by the ACE or the mining environmental directorate, opening the path to corrective measures and, at the outer edge, **title sanctions**; - **royalty transfers traced** and questioned at provincial and local level; - a company acting because its **buyers or financiers** asked why statutory obligations were unmet; - and, throughout, communities that stayed united, chose their own representatives, and kept open accounts.

Congolese communities and civil society have achieved these — and wrote several of the entitlements into national law in the first place.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If a specific obligation is unmet and you can prove it, keep going — this is the ground on which Congolese communities have the strongest claim, and each year renews it. If an agreement is signed, the campaign shifts immediately to **execution and accounting**, which is where most gains are lost. If the operation is artisanal or informal, expect the formal levers to bite weakly and concentrate on documentation and external mechanisms. And where security does not permit open organising, **slow down**: documentation shared through national organisations is a legitimate and sometimes the only responsible strategy.

The Bottom Line

The Democratic Republic of Congo's institutions are under-resourced, its enforcement is weak, its community provisions have gone largely unimplemented on the state's own audit, and in parts of the country the ordinary assumptions of legal campaigning do not hold. But Congolese law gives affected communities something rare: **funded, specific entitlements attached to the project itself**. Any significant project requires a prior **EIES** and an approved **PGES** evaluated by the **ACE**, with **local communities and Indigenous peoples named as stakeholders** in the public inquiry, and the State obliged to make environmental information public. In mining, the **certificat environnemental** now gates the exploitation permit; the company must negotiate and execute a **cahier des charges** with the communities; a **minimum 0.3% of annual turnover** must fund community development through an entity that includes **community representatives**; a share of the **royalty** flows directly to the province and the local entity; and recorded breaches can lead to **withdrawal of rights or forfeiture of the title**. Communities that select their representatives openly and record it, send the written demand early, obtain the PGES and prove the gap between promise and delivery, file complaints so breaches are recorded, negotiate across all affected villages together, keep their accounts open, and use the international scrutiny that follows Congolese minerals have secured signed agreements, constituted funds, enforced commitments, and fair compensation. No single step wins; the combination does. Start today by convening your villages, choosing your representatives properly, and sending one letter asking whether what you are owed exists.